

TENTATIVE RULINGS FOR DEPT. S36 [DATE]
BEFORE THE HONORABLE JOSEPH WIDMAN

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You must appear at the hearing, unless ordered otherwise, prepared to address the issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF RULING

SUPERIOR COURT OF THE STATE OF CALIFORNIA
FOR THE COUNTY OF SAN BERNARDINO

DILLON BRADLEY,

Plaintiff,

v.

MBVJ HESPERIA HOTELS, LLC, et al.,

Defendants.

Case No.: CIVSB2425292

**[TENTATIVE] ORDER
(1) GRANTING IN PART MOTION
TO COMPEL DEPOSITION AND
PRODUCTION OF DOCUMENTS
AS TO TAMER SALIEB; (2)
GRANTING IN PART MOTION TO
COMPEL RESUMPTION OF
SUSPENDED PMK DEPOSITIONS
AND COMPEL FURTHER,
PREPARED, DEPOSITION OF
PMK**

I. INTRODUCTION

A. The Pleadings and Allegations

Plaintiff Dillon Bradley contends that he was attacked in May 2024, in the laundry room of a Motel 6, by two individuals that gained entry to the motel through an unsecured and broken perimeter door. Bradley commenced suit over the incident in August 2024, as against G6 Hospitality LLC (G6) and MBVJ Hesperia Hotels, LLC (MBVJ), the alleged franchisor and franchisee of the motel, respectively). The Complaint includes claims for (1) negligence, (2) premises liability, and (3) negligent security.

B. The Pending Discovery Motions

Now, through one of the pending discovery motions, Bradley seeks to resume the deposition of MBVJ's PMK, Jamie Thong, which he indicates defense counsel suspended improperly. Bradley also seeks an order compelling the production of documents in connection with the deposition. The motion is made on the grounds that defense counsel suspended the deposition to seek a discovery referee, improperly asserted objections, and instructed the witness not to answer.

In a separately noticed motion, Bradley seeks to compel MBVJ's other PMK, Mahendra Desai, to resume and complete his deposition, answer questions he was instructed not to answer, and to produce documents he was asked to bring.

In a similar and concurrently pending motion, Bradley seeks to compel the resumption of the deposition of David Ray Redmond, G6's PMK, which the parties suspended via stipulation; to compel the production of documents; compel answers to specific questions the deponent was instructed not to answer; and to compel the PMK deposition as to topics which G6 refused to designate a witness.

In yet another motion, Bradley seeks to compel the deposition of Tamer Salieb, who is the purported managing agent for MBVJ. Salieb failed to appear despite being served with a deposition notice and without having asserted a valid objection, though Bradley concedes Defendants have indicated Salieb is medically unable to testify.

In a competing motion for protective order, Salieb seeks to avoid the deposition altogether because he contends he does not have any probative information, because of his medical condition, and because he was not served with a subpoena.

After issuing a tentative ruling, the Court now issues its final ruling as to the above motions.

II. SALIEB'S MOTION FOR PROTECTIVE ORDER

“The court is empowered to issue whatever order ‘justice requires’ to protect a party or deponent against” “unwarranted annoyance, embarrassment, or oppression, or undue burden and expense.” (The Rutter Group, Cal. Prac. Guide Civ. Pro. Before Trial Ch. 8E-11 at § 8:676 [Citing Code Civ. Proc., § 2025.420, subd. (b) and *Nativi v. Deutsche Bank Nat’l Trust Co.* (2014) 223 Cal.App.4th 261, 316—§ 2025.420(b) provides “nonexclusive list of permissible directions that may be included in a protective order”].) “Generally, this requires a showing that the burdens involved in the deposition proceeding clearly outweigh whatever benefits are sought to be obtained thereby.” (Ibid. [Citing Code Civ. Proc., § 2017.020, subd. (a)].) It is also ground for relief that the information sought is unnecessarily cumulative; or that it is obtainable elsewhere at less cost and inconvenience. (See Code Civ. Proc., § 2019.030, subd. (a).)

Salieb contends he is not a party, is not an employee of a party, was not present and did not witness the incident, and he cannot offer any testimony that Bradley has not or cannot obtain from Defendants or other witnesses. Salieb argues that testifying would exacerbate his medical conditions, creating a burden that outweighs any potential probative value.

The declaration from Salieb tends to support his minimal knowledge of any potential relevant information, at least direct percipient knowledge, since he is employed as a regional director at Fine Hospitality Group and was merely told about the incident by Thong. However, what Thong may have said about the incident could be relevant and could serve as an admission against Defendants. If Salieb is unaffiliated with Defendants, his testimony regarding Thong's statements provides unique, non-cumulative evidence.

As for the burden that the deposition would impose, neither Salieb nor his doctor disclose what medical conditions could be exacerbated, except the claimed PTSD and anxiety. As to that issue, the declarations are conclusory. However, both Salieb and Salzberg tend to suggest, in

seeking alternative restrictions, that the deposition could be feasible if done remotely, if Salieb's dog was present, if the deposition did not exceed three hours and if it were to incorporate breaks (though they still maintain the deposition should not be conducted at all).

While Bradley takes issue with Salieb's meet and confer efforts and other procedural aspects of the motion, he nevertheless agrees to "accept" the conditions "Dr. Salzberg prescribes." (Opposition at 1:6-7.) Given the importance of Salieb's testimony as it relates to admissions by Thong, and the vagueness of the moving evidence, it has not been shown that the burden of a deposition under the terms proposed would clearly outweigh the benefits sought to be obtained by the deposition.

The only caveats to Bradley's agreement are that the break times should not count against the deposition time, otherwise the breaks could consume the whole deposition, and Salieb should first take a break before terminating the deposition altogether. Bradley further argues that any terminated session must resume on a date certain, and that the medical necessity for ending the examination should remain subject to inquiry. Bradley's proposals are reasonable, except it is not entirely clear why he would need to inquire into the medical conditions further, especially if he ultimately obtains the testimony desired. Even considering Bradley's proposed modifications to Salieb's conditions, Salieb has still not shown that the burden of the deposition would "clearly outweigh" the benefits. To the extent Salieb fails to show for a continued deposition date, the Court can address the associated costs and sanctions at that time.

For these reasons, the Court grants the motion in part and requires the deposition to be taken remotely; allows Salieb to have his support dog present; permits Salieb to take breaks whenever he feels necessary and in no case less than every 45 minutes; limits the deposition to three hours of non-break time; permits Salieb to terminate the deposition if, after a break, he is

unable to proceed, but noting that if the deposition is terminated it shall be resumed on a date certain; requires the deposition to proceed in a calm and professional manner; and prohibits inquiry into Salieb's medical conditions.

III. MOTION TO COMPEL SALIEB'S DEPOSITION

A. Applicable Law

"If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party ... without having served a valid objection under [Code of Civil Procedure] Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document ... the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." (Code Civ. Proc., § 2025.450, subd. (a).) If the deponent appears and proceeds with the deposition but fails to answer particular questions or to produce particular items during the deposition, the party seeking discovery may file a motion to compel the deponent to answer the question or produce the materials. (See Code Civ. Proc., § 2025.480.)

The motion to compel must be "made no later than 60 days after the completion of the record of the deposition." (Code Civ. Proc., § 2025.480, subd. (b).) It is unclear whether the deposition record is "completed" when the reporter sends notice that the transcript is available for review or only after the expiration of time to sign or correct the transcript, but the safer course is to use the date of the reporter's notice.

The motion to compel must also be accompanied by a declaration stating facts showing "a reasonable and good faith attempt at an informal resolution of each issue presented by the motion." (Code Civ. Proc., §§ 2016.040 and 2025.480, subd. (b).) The statute requires a serious effort at negotiation and informal resolution, *i.e.*, counsel must "attempt to talk the matter over,

compare their views, consult and deliberate.” (*Townsend v. Sup.Ct. (EMC Mortg. Co.)* (1998) 61 Cal.App.4th 1431, 1433.) When the deponent fails to appear, the movant must first inquire about the non-appearance before seeking relief from the court.

The motion should also be supported by a separate statement outlining, for instance, the questions and answers in dispute and the factual or legal reasons why a further answer should be compelled. Alternatively, the court may permit the use of a “concise outline” of the issues. (*See* Cal. Rules Ct., Rule 3.1345 [separate statement required for motions involving the content of, or responses to, a discovery request though not explicitly referencing deposition motions].)

As for the issue of sanctions, if properly sought, the Court “shall” impose a monetary sanction against the party losing the motion to compel deposition answers or production of documents unless it finds the losing party “acted with substantial justification” or other circumstances make imposition of the sanction “unjust.” (Code Civ. Proc., §§ 2025.450, subd. (g)(1) and 2025.480, subd. (j).)

B. Analysis

In this case, Bradley served a notice of deposition for Salieb’s deposition (to occur on July 1, 2026) on the grounds that he is a managing agent of MBVJ. No objection was served by Salieb, but two days before the deposition Defendants served a one paragraph objection indicating Salieb was medically unable to testify. The objection was not supported by any medical documentation and Defendants also took the position that Salieb had to be served with a subpoena because he was not a party to the litigation. Bradley met and conferred, asking Salieb to appear for his deposition or produce a treating physician declaration, but neither occurred. The pending motion to compel was then filed on July 13 (though as indicated above Salieb also filed the motion for protective order).

As for whether Salieb is a “managing agent” and whether a subpoena was required, for purposes of the discovery statutes, “a managing agent is determined based on several factors: “(1) does the person exercise judgment and discretion in dealing with the party’s matters; (2) can the person be expected to comply with the party’s directive to appear; and (3) can the person be anticipated to identify himself or herself with the party’s interests.” (The Rutter Group, Civil Procedure Before Trial, Cal. Prac. Guide Civ. Pro. Before Trial Ch. 8E-5 at § 8:517 [citing *Lopez v. Watchtower Bible & Tract Soc. of New York, Inc.* (2016) 246 Cal.App.4th 566, 602].) The determination is “highly dependent” on the “specific facts of the case and the party seeking to compel the deposition has the initial burden to show the named deponent is a managing agent of the party. (*Ibid.* [noting, under *Lopez, supra*, a member of defendant’s “Governing Body” is not a managing agent where there is no evidence defendant could compel deponent’s attendance for his depo].)

The requirement that an “officer, director, managing agent, or employee” appear for deposition without necessity of subpoena does not mean that such persons are subject to the court’s personal jurisdiction. Rather, it means that it is the responsibility of the party to produce such persons for deposition (or risk the sanctions....).” (The Rutter Group, Civil Procedure Before Trial, Cal. Prac. Guide Civ. Pro. Before Trial Ch. 8E-5 at § 8:519.)

Bradley cites to Thong’s testimony, which indicates Salieb was her regional manager and direct supervisor, that she reports to him, and that he directed how to respond to the incident. Bradley also indicates Defendants have the power to produce Salieb because they expressly agreed to do so as their PMK. (Kitsinian Decl., ¶¶ 5-8, Ex.’s E-F.) Defendants essentially asserted the objections to the deposition on behalf of Salieb (an objection which did not raise the

subpoena issue). (Kitsinian Decl., Ex. B.) Under these circumstances, it would also appear that Salieb can be anticipated to identify himself with Defendants' interests.

Nevertheless, the record indicates Salieb's authority over Defendants derives solely from the franchise relationship, leaving Defendants without legal power to compel his attendance. Salieb indicates he is paid his salary and benefits by Fine Hospitality Group, which also has the power to handle HR issues that arise from his employment. Thus, it is not clear what recourse or power Defendants could exert to compel Salieb to appear for the deposition. In these circumstances, it would be unfair to compel Defendants to produce Salieb as a deponent at the risk of sanctions, as opposed to requiring Bradley to serve a subpoena which then obligates Salieb to personally comply.¹

Bradley is required to serve Salieb with a deposition subpoena. The motion to compel the deposition via the notice of deposition, and as against Defendants, is therefore DENIED.

IV. MBVJ's PMK DEPOSITIONS

A. The Motion as to Thong

The Thong PMK deposition occurred on June 30, 2026, but was suspended by defense counsel Goldberg, purportedly to obtain a discovery referee. Code of Civil Procedure section 2025.470 provides that a deposition officer may not suspend a deposition without a stipulation of all parties present unless a party attending the deposition demands it be suspended for purposes of obtaining a protective order. The deposition of Thong was not suspended by defense counsel for that reason and, even if it were, no protective order was ever sought. As a result, the suspension was improper and the deposition should be resumed.

¹ Indeed, The Rutter Group instructs that if there is ever a doubt, counsel should serve both a subpoena and a notice of deposition to avoid this problem. (The Rutter Group, Civil Procedure Before Trial, Cal. Prac. Guide Civ. Pro. Before Trial Ch. 8E-5 at § 8:516.)

Bradley vaguely seeks an order that the deposition proceed under certain “conditions.” While the motion appears moot to the extent Thong has sat for a second session of the deposition and a third is anticipated, if nothing else the circumstances underlying the dispute are relevant for purposes of the issue of sanctions.

Bradley indicates Goldberg was obstructing the deposition via objections, instructing the witness not to answer, and asking the court reporter to read back the questions posed. On these issues, Bradley’s attorney, Kitsinian, bears most of the responsibility. The record indicates Thong was asked if she was aware of what a prior witness testified. Goldberg objected on attorney-client privilege grounds. The objection has some potential merit. Unless Thong was present at the prior deposition or had read the transcript, she would lack personal knowledge of the prior testimony. To the extent Thong learned of the prior testimony exclusively through defense counsel, the inquiry improperly infringes on privileged attorney-client communications.

Kitsinian could have easily rephrased the questions to avoid defense counsel’s concerns (e.g., he could have asked “Besides what you may have learned from counsel...”), but he repeated the same line of questioning. The problem culminated in Kitsinian retorting that he had previously asked Thong if she had read the prior deposition testimony, but there is no indication that question was ever asked. Goldberg then objected to the extent Kitsinian was misstating the testimony and asked the court reporter to read back the question to resolve the dispute (which was reasonable under the circumstances and was not “commandeering” as Kitsinian suggests; the request was a logical way to resolve the dispute to allow the deposition to move forward—a responsibility both counsel share). Kitsinian refused, told Goldberg to stop speaking, threatened “I will bring a motion and I will sanction you and this witness” and essentially egged Goldberg on to terminate the deposition. (Kitsinian Decl., Ex. E.)

To the extent the “conditions” that Bradley seeks to impose relate to the valid objections related to the attorney-client privilege objection or prohibitions against asking the court reporter to read back testimony during the deposition to resolve a dispute over an objection in the moment, those conditions are improper and the motion should be denied. On the other hand, the PMK must testify “to the extent of any information known or reasonably available to the deponent [entity].” (Code Civ. Proc., § 2025.230) Thus, the person designated must ensure that the information known to the entity as a whole is known by the person designated.” (The Rutter Group, Cal. Prac. Guide Civ. Pro. Before Trial Ch. 8E-33 at § 8:462.) In this regard, Thong cannot necessarily avoid information reasonably available to her and then refuse to answer questions because the only information she received was from conversations with defense counsel.

The only other issue raised in the motion is that Bradley intended to depose Thong both as a PMK and as an individual. Defendants objected that the two should not happen simultaneously and that Thong had to be subpoenaed to testify individually. Through the motion Bradley renews the suggestion that both depositions should occur “together.” (Motion at 8:23-24.) It is not clear what is meant by Bradley’s suggestion. Although the depositions could be noticed for the same day, there should be two separate and distinct depositions to clarify what testimony is provided by Thong as the PMK. As for Defendants suggestion that Thong must be subpoenaed, they admitted that she was the general manager of the hotel. (Kitsinian Decl., Ex.’s 5-6.) As a result, no subpoena is necessary.

The Court orders Thong to complete both her PMK and individual depositions—conducted separately, even if on the same day—but denies Bradley’s requested conditions and sanctions. Nevertheless, the Court notes that Thong, as the PMK, must be informed with respect

to information reasonably available to her (*i.e.*, Thong cannot solely be informed by counsel, if information is reasonably available to her from other sources, while simultaneously asserting the privilege objection). Bradley can also inquire into what independent efforts Thong made to be informed about the PMK topics.

B. The Motion as to Mahendra Desai

As for Desai's PMK deposition, Desai was asked (1) whether MBVJ was responsible for preventing the crime at the motel, (2) if it was Desai's testimony that MBVJ was not responsible for preventing crime on its property, (3) whether the failure to lock the gate was "out of compliance with that standard," though what standard is referenced is unclear, (4) whether a routine inspection would have caught the gate being left open, (5) if there were any work orders for the door, and (6) whether the deponent was aware that Bradley and witnesses had seen people entering the pool through an unsecured pool door.

In the opposition, Defendants primarily argue that *Rifkind* applies. In that case, the Court of Appeal held it is improper to ask a party deponent to state or explain legal contentions in the case, or to designate documents or evidence supporting them, and the trial court therefore cannot compel the deponent to answer such questions. (*Rifkind v. Sup.Ct. (Good)* (1994) 22 Cal.App.4th 1255, 1259.) The case therefore undermines Bradley's suggestion that an instruction not to answer a question is only proper when an attorney-client privilege is asserted.

In any event, question no. 5 is not a legal contention question (nor was that the objection advanced at the deposition) and the question is otherwise not so vague it should not be answered. As for question no. 6, there was no instruction not to answer, but it was otherwise not answered since the deposition went off the record and *Rifkind* does not apply. On the other hand, question nos. 1-3 are more clearly legal contention questions. As for question no. 4, the question should be construed as suggesting that the gate being open was obvious and could have been seen; it is

more of a factual question than a legal contention question. As a result, the motion is granted as to question nos. 4-6, but denied as to nos. 1-3.

The motion further suggests Desai was unprepared to testify as to various PMK topics. The motion, however, is too broad and no specific testimony is cited within the motion nor is the PMK topic issue addressed within the separate statement. Nevertheless, the Court notes that PMKs must be reasonably informed based on the information reasonably available and to the extent any future issues remain at the further depositions, the parties should meet and confer further. Any future motion should outline what questions could not be addressed by the deponent via separate statement.

Finally, given the mixed nature of these rulings, and considering the below rulings, sanctions are not warranted.

V. G6'S PMK DEPOSITION

Finally, as for the G6 PMK deposition, David Ray Redmond appeared to testify, but Goldberg refused to permit Redmond to read aloud portions of testimony from another deposition. While instructing a witness to read a transcript aloud does not constitute a formal question, defense counsel lacked a valid legal basis to instruct the witness not to answer (*see generally*, Cal. Prac. Guide Civ. Pro. Before Trial Ch. 8E-12), though to the extent Redmond was instructed to read the transcript aloud that is not a “question” either. The objections nevertheless appear disruptive to the flow of the deposition, and the reading could ensure the deponent read the document and correctly understood it, which serves as a baseline for the follow up questions.

Defense counsel also objected to some of the requests on attorney-client privilege grounds and the witness was instructed not to answer. The same analysis outlined above again applies. Redmond must be reasonably informed about the PMK topics based on information reasonably available to G6 and should provide information he learned apart from conversations

with counsel. To this extent, the motion is granted as to the questions identified in the separate statement.

Bradley also contends that G6 did not produce a witness as to PMK topic nos. 3, 4, 7, 8, 9, 11, and 12. The objections to the deposition notice indicate G6 would not produce a witness with respect to those topics. (Kitsinian Decl., Ex. B.) PMK deposition notices need only describe the deposition topics with “reasonable particularity.” (Code Civ. Proc., § 2025.230.) The at-issue topics in this case meet that criteria and the objections lack merit. While, as to topic nos. 3-4, G6 indicated safety and security of the motel was the franchisee’s burden, G6 could still produce a witness knowledgeable about the contractual or policies underlying that position.

In the opposition, G6 suggests the deposition was suspended upon mutual agreement, but it acknowledges that the parties have not agreed to a date to resume the deposition. The objections to the topics are also not advanced in the opposition. Instead, G6 largely takes issue with the adequacy of the meet and confer efforts. It does appear that the meet and confer efforts were inadequate. (Kitsinian Decl., Ex. D [noting G6 was working on designating a deponent for the disputed topics].) Nevertheless, at this point, the Court provides a substantive ruling to move the case along and denies Bradley’s request for monetary sanctions based on the inadequacies in the meet and confer efforts.

Finally, the scope of the documents purportedly not produced is not entirely clear, but when a party agrees to produce responsive documents, but does not do so, compliance can be compelled. (See Code Civ. Proc., § 2031.320.) To the extent G6 agreed to produce documents that have not been produced, compliance should be compelled, but to the extent documents were withheld under an objection, the dispute is not adequately addressed in a separate statement.

VI. CONCLUSION

A. Salieb's Motion for Protective Order

1. Bradley's evidentiary objections to the declaration from Dr. Salzberg are **OVERRULED**.

2. Salieb's motion for a protective order is **GRANTED IN PART**. The Court requires the deposition to be taken remotely; allows Salieb to have his support dog present; permits Salieb to take breaks whenever he feels necessary and in no case less than every 45 minutes; limits the deposition to three hours of non-break time; permits Salieb to terminate the deposition if, after a break, he is unable to proceed, but noting that if the deposition is terminated it shall be resumed on a date certain; requires the deposition to proceed in a calm and professional manner; and prohibits inquiry into Salieb's medical conditions. Sanctions and costs of future depositions can be addressed in the future if the need arises.

a. Bradley largely agrees to the concessions and Salieb has not shown that the burden of the deposition (under the conditions imposed) would clearly outweigh the benefits of the deposition.

B. The Motion to Compel Salieb's Deposition

3. The motion to compel the deposition of Salieb is **DENIED**. He must be served with a subpoena if Bradley desires to take his deposition.

a. While Defendants proposed Salieb as a PMK, the evidence indicates Defendants lack sufficient power or control over Salieb such that he can actually be expected to comply with Defendants' demand to appear for the deposition. Salieb is not employed by Defendants and they have no power over his employment, pay, benefits, etc. It would therefore be improper to compel Defendants to comply with the deposition notice at the risk of sanctions.

C. The Motion as to Thong's Depositions

4. The motion as to Thong's depositions is **GRANTED IN PART** and **DENIED IN PART**. The Court compels the conclusion of Thong's PMK deposition and her individual

deposition (to be separately conducted, even if on the same day) but denies the request for the “conditions” and the request for sanctions.

a. Thong, as the PMK, must be reasonably informed with respect to information reasonably available to her (*i.e.*, she cannot solely be informed about the topics by counsel, if the same information is reasonably available to her from other sources, while simultaneously asserting the privilege objection).

b. Bradley can also inquire into what independent efforts Thong made to be informed about the PMK topics, but Bradley should phrase the questions as asking for information separate and apart from what the deponent learned solely from counsel.

D. The Motion as to Desai’s Deposition

5. The motion as to Desai’s deposition is GRANTED IN PART and DENIED IN PART. The motion is denied as to the questions identified in the separate statement as question nos. 1-3, but the motion is granted as to questions 4-6.

a. Desai should be reasonably informed about the PMK topics and should provide answers consistent with that independent knowledge, but the questions could be phrased as asking about Desai’s knowledge separate and apart from what was solely conveyed by counsel.

6. The request for sanctions is DENIED.

E. The Motion as to Redmond’s Deposition and the G6 PMK Deposition

7. The motion as to Redmond’s Deposition and the G6 PMK Deposition is GRANTED IN PART, as to the questions identified in the separate statement. Redmond is required to be reasonably informed, but to the extent he lacks information apart from conversations conveyed by counsel, the privilege objections are valid. The questions should be phrased as asking about Redmond’s knowledge separate and apart from what was solely conveyed by counsel. Bradley can also inquire into what efforts Redmond made to uncover the information (to flesh out whether Redmond was diligent in preparing for the deposition or whether he relied solely on counsel).

8. The motion is GRANTED to compel the deposition as to PMK topic nos. 3, 4, 7, 8, 9, 11, and 12.

9. G6 is ORDERED to produce all documents it agreed to produce.

10. The request for sanctions is DENIED.

IT IS SO ORDERED.

Dated: _____

[TENTATIVE – NOT FINAL]

Hon. Joseph B. Widman
Judge of the Superior Court

Tentative -- NOT FINAL